



RE-25 SELLER'S PROPERTY CONDITION DISCLOSURE FORM

JANUARY 2026 EDITION



Seller's Name(s): _____ Date: _____

Property Address: _____

Section 55-2501, et seq., Idaho Code, requires **SELLERS** of residential real property to complete a property condition disclosure form and deliver a signed and dated copy of the completed disclosure form to each prospective transferee or his agent within ten (10) calendar days of transferor's acceptance of transferee's offer. "Residential Real Property" means real property that is improved by a building or other structure that has one (1) to four (4) dwelling units or an individually owned unit in a structure of any size. This also applies to real property which has a combined residential and commercial use.

Notwithstanding that transfer of newly constructed residential real property that previously has not been inhabited is exempt from disclosure pursuant to section 55-2505, Idaho Code, **SELLERS** of such newly constructed and non-exempt existing residential real property shall disclose information regarding annexation and city services in the form as prescribed in questions **1, 2, and 3**.

	Yes	No	Do Not Know	The property is already within city limits
1. Is the property located in an area of city impact, adjacent or contiguous to a city limit, and thus legally subject to annexation by the city?				
2. Does the property, if not within city limits, receive any city services, thus making it legally subject to annexation by the city?				
3. Does the property have a written consent to annex recorded in the county recorder's office, thus making it legally subject to annexation by the city?				

THE PURPOSE OF THE STATEMENT: This is a statement made by the **SELLER** of the conditions and information concerning the property known by the **SELLER**. This is NOT a statement of any agent representing the **SELLER** and no agent is authorized to make representations, or verify representations, concerning the condition of the property. Unless otherwise advised, the **SELLER** does not possess any expertise in construction, architectural, engineering or any other specific areas related to the construction or condition of the improvements on the property. Other than having lived at or owning the property, the **SELLER** possesses no greater knowledge than that which could be obtained upon careful inspection of the property by the potential **BUYER**. Unless otherwise advised, the **SELLER** has not conducted any inspection of generally inaccessible areas such as the foundation or roof. **This disclosure is not a warranty** of any kind by the **SELLER** or by any agent representing the **SELLER** in this transaction. It is not a substitute for any inspections. The **BUYER** is encouraged to obtain his/her own professional inspections.

THE FOLLOWING ARE IN THE CONDITIONS INDICATED:

	None/Not Included	Working	Not Working	Do Not Know	Remarks
APPLIANCES SECTION					
Built-in Vacuum System					
Clothes Dryer					
Clothes Washer					
Dishwasher					
Disposal					
Refrigerator					
Kitchen Vent Fan/Hood					
Microwave Oven					
Oven(s)/ Range(s)/Cook top(s)					
Trash Compactor					
ELECTRICAL SYSTEMS SECTION					
Security System(s)					
Garage Door Opener(s)/Control(s)					
Light Fixtures					
Smoke Detector(s)/Fire Alarm(s)					
Carbon Monoxide Detector(s)					
	None/Not included	Working	Not Working	Owned	Financed
Solar Panels					

SELLER'S Initials (____)(____) Date _____ BUYER'S Initials (____)(____) Date _____

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PROPERTY ADDRESS: _____

HEATING & COOLING SYSTEMS SECTION	None/Not Included	Working	Not Working	Do Not Know	Remarks
Attic Fan(s)					
Central Air Conditioning					
Room Air Conditioner(s)					
Evaporative Cooler(s)					
Fireplace(s)					
Fireplace Insert(s)					
Furnace/Heating System(s)					
Humidifier(s)					
Wood/Pellet Stove(s)					
Air Cleaner(s)					
FUEL TANK SECTION	N/A () Propane () Oil () Diesel () Gasoline () Other ()				
Location:	Size:				
In Use: () Not In Use: () Above Ground: () Buried: () Owned: () Leased: ()					
MOISTURE & DRAINAGE CONDITIONS SECTION	Yes	No	Do Not Know	Remarks	
Is the property located in a floodplain?					
Are you aware of any site drainage problems?					
Has there been any water intrusion or moisture related damage to any portion of the property, including, but not limited to, the crawlspace, floors, walls, ceilings, siding, or basement, based on flooding; moisture seepage, moisture condensation, sewer overflow/backup, or leaking pipes, plumbing fixtures, appliances, or moisture related damage from other causes?					
Have you had the property inspected for the existence of any types of mold?					
If the property has been inspected for mold, is a copy of the inspection report available?					
Are you aware of the existence of any mold-related problems on any interior portion of the property, including but not limited to, floors, walls, ceilings, basement, crawlspaces, and attics, or any mold-related structural damage?					
Have you ever had any water intrusion, moisture related damage, mold or mold-related problems on the property remediated, repaired, fixed or replaced?					
WATER & SEWER SYSTEMS SECTION	None/Not Included	Working	Not Working	Do Not Know	Remarks
Hot Tub/Spa and Equipment					
Pool and Pool Equipment					
Plumbing System – Faucets and Fixtures					
Water Heater(s)					
Water Softener (owned)					
Water Softener (leased)					
Landscape Sprinkler System					
Septic System					
Sump Pump/Lift Pump					
SEWER SYSTEM TYPE SECTION	Public System (City/Municipal)	Community System	Private System	Other/Remarks	
Property Sewer Provided By:					
If a private system, please provide the following information about the septic system:	Date Last Pumped / /	Is there a Maintenance Fee? ☐ Yes ☐ No	If Yes, list amount & explain monthly or annual fee?		
	Yes	No	Do Not Know	Other/Remarks	
If a private septic system, is there a shared drain field?					

SELLER'S Initials () () Date _____ BUYER'S Initials () () Date _____

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PROPERTY ADDRESS: _____

WATER SOURCE & TYPE SECTION	Public System (City/Municipal)	Community System	Private System (Well, Cistern, etc)	Other/Remarks
Domestic Water Provided By:				
Landscape Water Provided By:				
Irrigation Water Provided By:				
	Yes	No	Do Not Know	Other/Remarks
Shared Well				
Shared Well Agreement				
ROOF SECTION	Year of Installation	Do Not know		Remarks
What is the age of the roof?				
	Yes	No	Do Not Know	Remarks
Is there present damage to the roof?				
Does the roof leak?				
SIDING SECTION	Year of Installation	Do Not Know		
What is the age of the siding?				
	Yes	No	Do Not Know	Remarks
Are there any problems with the siding?				
HAZARDOUS CONDITIONS SECTION	Yes	No	Do Not Know	Remarks
Are you aware of any asbestos, radon, or other toxic or hazardous materials on the property?				
Is there a radon mitigation system?				
Are you aware if the property has ever been used as an illegal drug manufacturing site?				
Are you aware of any current or previous insect, rodent or other pest infestation(s) on the property?				
Have you ever had the property serviced by an exterminator or had the property otherwise remediated for insect, rodent or other pest infestation(s)?				
Is there any damage due to wind, fire, or flood?				
OTHER DISCLOSURES SECTION	Yes	No	Do Not Know	Remarks
Are there any conditions that may affect your ability to clear title such as encroachments, easements, zoning violations, lot line disputes, etc.?				
Has the property been surveyed since you owned it?				
Have you received any notices by any governmental or quasi-governmental entity affecting this property; i.e. Local improvement district (LID) or zoning changes, etc.?				
Are there any structural problems with the improvements?				
Are there any structural problems with the foundation?				

SELLER'S Initials () () Date _____

BUYER'S Initials () () Date _____

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PROPERTY ADDRESS: _____

OTHER DISCLOSURES SECTION	Yes	No	Do Not Know	Remarks
Have any substantial additions or alterations been made without a building permit?				
Has the fireplace/wood stove/chimney/flue been cleaned?				
Has the fireplace/wood stove/chimney/flue been inspected?				
Are you aware or is there reason to believe that the home is located in a historic district or is a historic landmark?				
Are all mineral rights appurtenant to the property included, unencumbered, and part of the sale of this property?				
Has the home on this property ever been moved?				
Have you ever filed a homeowner's insurance claim on the property?				
Is there a Home/Condo Owner's Association?				
Is there a private road to this property?				
Is there a shared road agreement for this property?				
ADDITIONAL REMARKS AND/OR EXPLANATIONS SECTION:	Yes	No	Do Not Know	If yes, explain in the lines below
Are you aware of any other existing problems concerning the property including legal, physical, product defects or other items that are not already listed?				

The **SELLER** certifies that the information herein is true and correct to the best of the **SELLER'S** knowledge as of the date signed by the **SELLER**. The **SELLER** is familiar with the residential property and each act performed in making a disclosure of an item of information is made and performed in good faith.

SELLER and BUYER understand and acknowledge that the statements contained herein are the representations of the **SELLER** regarding the condition of the property. No statement made herein is a statement of a **SELLER'S** agent or agents, and no agent is authorized to make any statement, or verify any statement, relating to the condition of the property. **SELLER and BUYER** also understand and acknowledge that **SELLER** in no way warrants or guarantees the above information regarding the property.

SELLER and BUYER understand that Listing Broker and Selling Broker in no way warrant or guarantee the above information on the property.

SELLER _____	DATE _____	SELLER _____	DATE _____
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BUYER hereby acknowledges receipt of a copy of this disclosure **BUYER** may only exercise BUYER'S statutory right to rescind the purchase and sale agreement within **three (3) business days** following receipt of this disclosure statement by a written, signed and dated document that is delivered to the seller or his agents by personal delivery, ordinary or certified mail, or facsimile transmission. Per statute BUYER's rescission must be based on a specific objection to a disclosure in the disclosure statement. The notice of statutory rescission must specifically identify the disclosure objected to by the BUYER. If no signed notice of rescission is received by the SELLER within the **three (3) business day** period, BUYER's statutory right to rescind is waived. The statutory rescission referenced in this section is separate and distinct from, and does not affect, any rescission, cancellation, or contingency term enumerated in any other written document related to this transaction, including but not limited to the purchase and sale agreement.

BUYER _____	DATE _____	BUYER _____	DATE _____
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AMENDED DISCLOSURE FORM: Subsequent to the delivery of the initial **SELLER'S** Property Condition Disclosure Form previously acknowledged, **SELLER** hereby makes the following amendments. (Attach additional pages if necessary.) Other than those amendments made below, the **SELLER** states that there have been no changes to the information contained in the initial **SELLER'S** Property Condition Disclosure Form. **IF THERE ARE NO UPDATES, THERE IS NO NEED TO SIGN BELOW.**

SELLER _____	DATE _____	SELLER _____	DATE _____
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BUYER hereby acknowledges receipt of a copy of this amended disclosure **BUYER** may only exercise BUYER'S statutory right to rescind the purchase and sale agreement within **three (3) business days** following receipt of this amended disclosure statement by a written, signed and dated document that is delivered to the seller or his agents by personal delivery, ordinary or certified mail, or facsimile transmission. Per statute BUYER's rescission must be based on a specific objection to a disclosure in this amended disclosure statement. The notice of statutory rescission must specifically identify the disclosure objected to by the BUYER. If no signed notice of rescission is received by the SELLER within the **three (3) business day** period, BUYER's statutory right to rescind is waived. The statutory rescission referenced in this section is separate and distinct from, and does not affect, any rescission, cancellation, or contingency term enumerated in any other written document related to this transaction, including but not limited to the purchase and sale agreement.

BUYER _____	DATE _____	BUYER _____	DATE _____
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